

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.
Date Filed:
Plaintiff designates
KINGS County as
the place of trial

PHILLIP PITTER

The basis of venue is
Place of occurrence

Plaintiff(s)

SUMMONS

-against-

INDEX #

THE CITY OF NEW YORK, P.O. THOMAS
COSTARELLA, SGT. LEUNG KAIYUEN,
P.O. "JAMES" ROSSIGNOLO, first name
fictitious and presently unknown and
POLICE OFFICERS "JOHN DOES 1-10", said
names being fictitious and unknown

Defendant(s)

To the above named Defendant(s)

YOU ARE HEREBY SUMMONED to answer the Complaint in
this action and to serve a copy of your answer, or, if the
Complaint is not served with this Summons, to serve a Notice of
Appearance, on the Plaintiff's attorney(s) within 20 days after
the service of this Summons, exclusive of the day of service (or
within 30 days after the service is complete if this summons is
not personally delivered to you within the State of New York);
and in the case of your failure to appear or answer, judgment
will be taken against you by default for the relief demanded in
the Complaint.

Dated: New York, New York
September 15, 2016

BURNS & HARRIS
Attorney for Plaintiff(s)



ALISON R. KEENAN
233 Broadway - Suite 900
New York, New York 10279
(212) 393-1000

THE CITY OF NEW YORK
100 CHURCH STREET
NEW YORK, NY 10007

P.O. THOMAS COSTARELLA
SGT. LEUNG KAIYUEN,
P.O. "JAMES" ROSSIGNOLO
100 Church Street
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

PHILLIP PITTER

Plaintiff

INDEX #:

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, P.O. THOMAS
COSTARELLA, SGT. LEUNG KAIYUEN,
P.O. "JAMES" ROSSIGNOLO, first name
fictitious and presently unknown and
POLICE OFFICERS "JOHN DOES 1-10", said
names being fictitious and unknown

Defendants

Plaintiff, by his attorneys, BURNS & HARRIS, as and for
Verified Complaint herein, respectfully sets forth and alleges:

AS AND FOR A FIRST CAUSE OF ACTION:

1. That this action arises under the United States
Constitution, particularly under provisions of the First, Fourth,
Fifth and Fourteenth Amendments to the Constitution of the United
States, and under Federal law, particularly the Civil Rights Act,
Title 42 of the United States Code, Section 1983, 1985, 1986 and
1988, and the rights under the Constitution and laws of the State
of New York.

2. Each and all of the acts of the defendants herein
were done by the defendants, their servants, agents and/or
employees, and each of them, not as individuals, but under the
color and pretense of the statutes, ordinances, regulations,
customs and usages of the State of New York and the City of New
York, and under the authority of their office as officers of said
City and State.

3. That at all times herein mentioned, the defendant THE CITY OF NEW YORK was a Municipal corporation duly existing under and by virtue of the laws of the State of New York.

4. That at all times herein mentioned, the defendant THE CITY OF NEW YORK was a corporation doing business in the State of New York.

5. That at all times herein mentioned, the defendant THE CITY OF NEW YORK operated a police department as part of and in conjunction with its municipal function.

6. That at all times herein mentioned, the defendant THE CITY OF NEW YORK maintained said police department.

7. That at all times herein mentioned, the defendant THE CITY OF NEW YORK managed said police department.

8. That at all times herein mentioned, the defendant THE CITY OF NEW YORK controlled said police department.

9. That at all times herein mentioned, the defendant THE CITY OF NEW YORK, its servants, agents and/or employees employed police officers, sergeants, detectives, and other personnel, to work as representatives of THE CITY OF NEW YORK.

10. That at all times herein mentioned, it was the duty of the defendant THE CITY OF NEW YORK, its servants, agents, police officers, sergeants, detectives, employees and/or personnel to provide for and/or ensure the safety, protection, security and well-being of peaceful and law-abiding citizens.

11. That at all times herein mentioned, it was the duty of the defendant THE CITY OF NEW YORK, to sufficiently hire, train and retain within the Police Academy and at the Command,

Precinct and Patrol levels so as to ensure that its servants, agents, police officers, sergeants, detectives, employees and/or personnel provide for and/or ensure the safety, protection, security and well-being of persons who were in the presence, proximity, custody and/or control of the said police department, officers, sergeants, detectives and/or personnel.

12. That at all times herein mentioned, the defendant THE CITY OF NEW YORK had the duty to sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels so as to ensure that the actions, activities and behavior of its said servants, agents, police officers, sergeants, detectives and/or employees conform to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm.

13. That at all times herein mentioned, the defendant THE CITY OF NEW YORK, had the duty to sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels so as to ensure that its said servants, agents, police officers, sergeants, detectives and/or employees conduct themselves in such a manner so as not to intentionally, wantonly and/or negligently result in injuries to others, including the plaintiff herein.

14. That at all times herein mentioned, the defendant THE CITY OF NEW YORK employed a police officer known as P.O. THOMAS COSTARELLA, to work as a representative of THE CITY OF NEW YORK.

15. That at all times herein mentioned, the defendant P.O. THOMAS COSTARELLA was a servant, agent, employee and/or representative of the defendant THE CITY OF NEW YORK.

16. That at all times herein mentioned, the defendant THE CITY OF NEW YORK had the duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels so as to ensure that the actions, activities and behavior of said defendant police officer P.O. THOMAS COSTARELLA conform to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly, and/or negligently inflict injuries to citizens such as the plaintiff herein.

17. That at all times herein mentioned, the defendant P.O. THOMAS COSTARELLA, as a police officer of THE CITY OF NEW YORK, had the duty to ensure that his actions, activities and behavior conform to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly, and/or negligently inflict injuries to citizens such as the plaintiff herein.

18. That at all times herein mentioned, the defendant THE CITY OF NEW YORK employed a police officer and/or sergeant known as SGT. LEUNG KAIYUEN, to work as a representative of THE CITY OF NEW YORK.

19. That at all times herein mentioned, the defendant SGT. LEUNG KAIYUEN was a servant, agent, employee and/or representative of the defendant THE CITY OF NEW YORK.

20. That at all times herein mentioned, the defendant THE CITY OF NEW YORK had the duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels so as to ensure that the actions, activities and behavior of said defendant police officer SGT. LEUNG KAIYUEN conform to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly, and/or negligently inflict injuries to citizens such as the plaintiff herein.

21. That at all times herein mentioned, the defendant SGT. LEUNG KAIYUEN, as a police officer of THE CITY OF NEW YORK, had the duty to ensure that his actions, activities and behavior conform to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm That at all times herein mentioned, the defendant THE CITY OF NEW YORK had the duty to sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels so as to ensure that the actions, activities and behavior of said defendant police officer SGT. LEUNG KAIYUEN conform to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly, and/or negligently inflict injuries to citizens such as the plaintiff

herein.

22. That at all times herein mentioned, the defendant THE CITY OF NEW YORK employed a police officer and/or sergeant known as P.O. "JAMES" ROSSIGNOLO, first name fictitious and presently unknown, to work as a representative of THE CITY OF NEW YORK.

23. That at all times herein mentioned, the defendant P.O. "JAMES" ROSSIGNOLO, first name fictitious and presently unknown was a servant, agent, employee and/or representative of the defendant THE CITY OF NEW YORK.

24. That at all times herein mentioned, the defendant THE CITY OF NEW YORK had the duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels so as to ensure that the actions, activities and behavior of said defendant police officer P.O. "JAMES" ROSSIGNOLO, first name fictitious and presently unknown conform to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm That at all times herein mentioned, the defendant THE CITY OF NEW YORK had the duty to sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels so as to ensure that the actions, activities and behavior of said defendant police officer SGT. LEUNG KAIYUEN conform to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly, and/or negligently inflict injuries to citizens such as the

plaintiff herein.

25. That at all times herein mentioned, the defendant P.O. "JAMES" ROSSIGNOLO, first name fictitious and presently unknown, as a police officer of THE CITY OF NEW YORK, had the duty to ensure that his actions, activities and behavior conform to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly, and/or negligently inflict injuries to citizens such as the plaintiff herein.

26. That at all times herein mentioned, the defendant THE CITY OF NEW YORK employed a police officer and/or officers named herein as POLICE OFFICERS "JOHN DOES and JANE DOES 1-10", said names being fictitious and unknown, persons intended being police officers and personnel of the New York City Police Department to work as representatives of THE CITY OF NEW YORK.

27. That at all times herein mentioned, the defendants POLICE OFFICERS "JOHN DOES and JANE DOES 1-10", said names being fictitious and unknown, persons intended being police officers and personnel of the New York City Police Department were servants, agents, employees and/or representatives of the defendant THE CITY OF NEW YORK.

28. That at all times herein mentioned, the defendant THE CITY OF NEW YORK had the duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels so as to ensure that the actions, activities and behavior of said defendant police officer

and/or officers named herein as POLICE OFFICERS "JOHN DOES and JANE DOES 1-10", said names being fictitious and unknown, persons intended being police officers and personnel of the New York City Police Department conform to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly, and/or negligently inflict injuries to citizens such as the plaintiff herein.

29. That at all times herein mentioned, the defendants POLICE OFFICERS "JOHN DOES and JANE DOES 1-10", said names being fictitious and unknown, persons intended being police officers and personnel of THE CITY OF NEW YORK had the duty to ensure that their actions, activities and behavior conform to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly, and/or negligently inflict injuries to citizens such as the plaintiff herein.

30. Each and all of the acts of the defendants alleged herein were done by the defendants, their agents, servants and/or employees, and each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York and the County of Kings, and under the authority of their office as police officers of said state, city and county.

31. That on or about the 16th day of September, 2015, and prior thereto, the **CITY OF NEW YORK**, caused the plaintiff to be injured and damaged in failing to competently hire, train and retain police officers, including but not limited to the defendant officers to conform and conduct themselves for the protection of citizens, such as plaintiff, against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly and/or negligently inflict injuries to citizens such as plaintiff herein.

32. That on the 16th day of September, 2015, the plaintiff PHILLIP PITTER, was present in the vicinity Batchelder Street and Avenue V, in the County of Kings, City and State of New York.

33. That on the 16th day of September, 2015, the plaintiff PHILLIP PITTER, was lawfully and peacefully present was present in the vicinity Batchelder Street and Avenue V, in the County of Kings, City and State of New York.

34. That on the 16th day of September, 2015, a certain police officer, detective, sergeant and/or officers of the defendant, THE CITY OF NEW YORK, were present in the vicinity Batchelder Street and Avenue V, in the County of Kings, City and State of New York.

35. That on the 16th day of September, 2015, said police officer, detective, sergeant and/or officers of the defendant, THE CITY OF NEW YORK, were present in the vicinity Batchelder Street and Avenue V, in the County of Kings, City and State of New York, in the course and scope of their employment

for the defendant THE CITY OF NEW YORK.

36. That on the 16th day of September, 2015, the defendant P.O. THOMAS COSTARELLA, was present in the vicinity Batchelder Street and Avenue V, in the County of Kings, City and State of New York.

37. That on the 16th day of September, 2015, the defendant P.O. THOMAS COSTARELLA, was present in the vicinity Batchelder Street and Avenue V, in the County of Kings, City and State of New York, in the course and scope of his employment as a police officer.

38. That on the 16th day of September, 2015, the defendant P.O. THOMAS COSTARELLA, was present in the vicinity Batchelder Street and Avenue V, in the County of Kings, City and State of New York, in the course and scope of his employment as a police officer for the defendant THE CITY OF NEW YORK.

39. That on the 16th day of September, 2015, the defendant SGT. LEUNG KAIYUEN was present in the vicinity Batchelder Street and Avenue V, in the County of Kings, City and State of New York.

40. That on the 16th day of September, 2015, the defendant SGT. LEUNG KAIYUEN, was present in the vicinity Batchelder Street and Avenue V, in the County of Kings, City and State of New York, in the course and scope of his employment as a police officer.

41. That on the 16th day of September, 2015, the defendant SGT. LEUNG KAIYUEN, was present in the vicinity Batchelder Street and Avenue V, in the County of Kings, City and

State of New York, in the course and scope of his employment as a police officer for the defendant THE CITY OF NEW YORK.

42. That on the 16th day of September, 2015, the defendant P.O. "JAMES" ROSSIGNOLO, first name fictitious and presently unknown, was present in the vicinity Batchelder Street and Avenue V, in the County of Kings, City and State of New York.

43. That on the 16th day of September, 2015, the defendant P.O. "JAMES" ROSSIGNOLO, first name fictitious and presently unknown, was present in the vicinity Batchelder Street and Avenue V, in the County of Kings, City and State of New York, in the course and scope of his employment as a police officer.

44. That on the 16th day of September, 2015, the defendant P.O. "JAMES" ROSSIGNOLO, first name fictitious and presently unknown, was present in the vicinity Batchelder Street and Avenue V, in the County of Kings, City and State of New York, in the course and scope of his employment as a police officer for the defendant THE CITY OF NEW YORK.

45. That on the 16th day of September, 2015, the defendants, POLICE OFFICERS "JOHN DOES and JANE DOES 1-10", said names being fictitious and unknown, were present in the vicinity Batchelder Street and Avenue V, in the County of Kings, City and State of New York.

46. That on the 16th day of September, 2015, the defendants, POLICE OFFICERS "JOHN DOES and JANE DOES 1-10", said names being fictitious and unknown, were present in the vicinity Batchelder Street and Avenue V, in the County of Kings, City and State of New York, in the course and scope of their employment as

police officers, sergeants and/or detectives.

47. That on the 16th day of September, 2015, the defendants, POLICE OFFICERS "JOHN DOES and JANE DOES 1-10", said names being fictitious and unknown, were present in the vicinity Batchelder Street and Avenue V, in the County of Kings, City and State of New York, in the course and scope of their employment as police officers, sergeants and/or detectives for the defendant THE CITY OF NEW YORK.

48. That on the 16th day of September, 2015, the plaintiff PHILLIP PITTER, was assaulted and battered and wrongfully and falsely arrested, detained and confined by said police officer, sergeants, detectives and/or officers without probably or just cause, grounds or provocation

49. That on the 16th day of September, 2015, and continuing for an egregiously long period of time, the plaintiff PHILLIP PITTER, was wantonly, intentionally, maliciously, illegally, repeatedly and brutally tackled, thrown to the ground, violently struck in the head, face, neck and body, stomped upon, assaulted, attacked, beaten and battered by said police officer, sergeants, detectives and/or officers while he was present upon the premises located at 29-86 Avenue V, in the County of Kings, City and State of New York.

50. Following said assault and battery, the defendant officers wrongfully detained and arrested the plaintiff **PHILLIP PITTER** at the 61st Precinct and imprisoned him.

51. Immediately thereafter, aforementioned defendants, their agents, servants and employees falsely arrested and imprisoned the plaintiff unreasonably handcuffed him too tightly and threatened the plaintiff with the use of physical force.

52. Following said arrest, the defendant officers wrongfully and falsely accused and charged the plaintiff **PHILLIP PITTER** with violation of penal laws of the State of New York.

53. The false arrest and imprisonment of the plaintiff **PHILLIP PITTER** was caused by all of the defendants, their servants, agents and/or employees, without warrant, authority of law, or any reasonable cause or belief that he was, in fact, guilty of the crimes with which he was charged.

54. As a result of the aforesaid arrest, plaintiff **PHILLIP PITTER** was forcibly hand-cuffed, detained, transported and treated as a common criminal and incarcerated and imprisoned at various facilities owned, operated, maintained and controlled by the defendant **CITY OF NEW YORK**.

55. That all of the actions of the defendants, their agents, servants and/or employees were committed with recklessness and/or the intention to cause bodily and mental injury to the plaintiff; to arrest, restrain and imprison the plaintiff without his consent; that the plaintiff was at all times conscious of his arrest, did not consent to the assault, battery, false arrest, false imprisonment, and the assault, false arrest and imprisonment were not otherwise privileged.

56. The assault, battery, arrest and imprisonment of the plaintiff were negligent and/or reckless and/or intentional and were not justified by probable cause or other legal privilege and the defendants, their agents, servants and/or employees acting under the color of statute, ordinances, regulations, customs and usages of the State, City and County of New York, and under the authority of their office as police officers for the CITY OF NEW YORK, falsely charged the plaintiff with violation of the penal law although the defendants, acting in such capacity, knew that such charges were false.

57. That by reason of the foregoing, the plaintiff PHILLIP PITTER, was injured.

58. That the foregoing occurrence and the resulting injuries to the plaintiff were caused solely by reason of the carelessness, negligence, intentional infliction of emotional distress, abuse of process, excessive use of force, assault and battery on the part of the defendants, their servants, agents, police officers and/or employees, who conspired to and did fail to prevent the violation of the plaintiff's Civil and Constitutional rights, and without any cause, provocation or negligence on the part of the plaintiff contributing thereto.

59. That this action arises under the United States Constitution, particularly under provisions of the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States (42 U.S.C. Section 1981, 1983, 1985, 1986 and 1988), the Civil Rights Act, and arising under the law and statutes of the State of New York.

60. Each and all of the acts of the defendants herein were done by the defendants, their servants, agents and/or employees, and each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York and the City of New York, and under the authority of their office as police officers of said City and State.

61. That the foregoing occurrences and the resulting injuries to the plaintiff were caused solely by reason of the carelessness, negligence, intentional infliction of emotional distress, abuse of process, excessive use of brutal force, assault and battery, false arrest and imprisonment on the part of the defendant, its servants, agents, police officers, and/or employees, in violation of the plaintiff's Civil and Constitutional rights, and without any cause, provocation or negligence on the part of the plaintiff contributing thereto.

62. That by reason of the foregoing, this plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be

unable to pursue his usual duties with the same degree of efficiency as prior to this occurrence, all to his great damage.

63. That heretofore and within 90 days after the claim served upon arose, the plaintiff caused a Notice of Claim, in writing, sworn to by the plaintiff, containing the name and post office address of the plaintiff, and plaintiff's attorney, the nature of the claim, the time when, the place where and the manner by which the claim arose, the items of damage and the injuries claimed to have been sustained, to be served upon the defendant THE CITY OF NEW YORK by delivering a copy thereof to the person designated by law as a person to whom such claims may be served.

64. That more than thirty (30) days have elapsed since the aforesaid Notices of Claim were served on the said defendant.

65. That the defendants were negligent and have refused and neglected to adjust, settle and pay the same.

66. That this claim has been commenced and this action has been started within one year and ninety days after the happening of the event upon which the claim is based.

67. That all conditions and requirements precedent to the commencement of this action have been complied with.

68. That oral examination of the plaintiff has been conducted or waived by the defendants in compliance with Section 50-H of the General Municipal Law.

69. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR A SECOND CAUSE OF ACTION:

70. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First Cause of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

71. That on the 16th day of September, 2015, and continuing thereafter, the defendant police officers herein engaged in prolonged irrational, unwarranted and groundless incidents of violently, savagely, brutally and relentlessly attacking, assaulting, beating, punching, kicking, stomping and striking the plaintiff in and about the face, head, neck, legs, back and body, with closed fists, dangerous objects, feet, knees and rigid shoes, standing and stomping on his injured body parts after he had been violently thrown to the ground and lay seriously injured and defenseless, causing the plaintiff to suffer serious personal injuries.

72. That by reason of the foregoing, the plaintiff has sustained serious injuries and damages in an amount in excess of the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction, in an amount to be determined upon the trial of this action.

AS AND FOR A THIRD CAUSE OF ACTION:

73. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First and Second Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

74. That on the 16th day of September, 2015, and continuing thereafter, the plaintiff PHILLIP PITTER was intentionally, illegally, falsely and wrongfully arrested and imprisoned by said police officers, without probable or just cause or provocation, who falsely accused the plaintiff of crimes of which he was wholly innocent, and imprisoned, incarcerated and detained the plaintiff for an unreasonable period of time thereafter until he was released.

75. That on the 16th day of September, 2015, and continuing thereafter, the plaintiff PHILLIP PITTER was intentionally, illegally, falsely and wrongfully arrested and imprisoned by said police officers, without probable or just cause or provocation, taken and transported as a common criminal to the 61st police precinct, holding cells, Central booking and other locations where they falsely accused the plaintiff of crimes of which he was wholly innocent, and imprisoned, incarcerated and detained the plaintiff for an unreasonable period of time thereafter until he was released.

76. That on the 16th day of September, 2015, and continuing thereafter, and while seriously injured and defenseless, the plaintiff PHILLIP PITTER was intentionally,

illegally, falsely and wrongfully arrested and imprisoned, forcefully handcuffed excessively tightly, moved, pushed, shoved, searched, seized and manipulated by said police officers, without probable or just cause or provocation, who falsely accused the plaintiff of crimes of which he was wholly innocent, and arrested, imprisoned, incarcerated and detained the plaintiff for an unreasonable period of time thereafter until he was released.

77. That the said police officers were employees of the defendant THE CITY OF NEW YORK, and were acting within the scope of their employment for the said defendant.

78. That on the 16th day of September, 2015, and continuing thereafter, the defendant THE CITY OF NEW YORK, by its said police officers, servants, agents and/or employees and personnel, including the defendants named herein, acting within the scope of their employment by the said defendant did falsely arrest, imprison and incarcerate the plaintiff and detain him without just cause or provocation.

79. That the plaintiff PHILLIP PITTER was fully conscious of the false arrest, detention, imprisonment and confinement, did not consent to same, and such confinement was not otherwise privileged.

80. That by reason of the foregoing, the plaintiff was caused to suffer severe and serious injuries and damages both physically and mentally, suffered grievous harm, embarrassment, defamation of character, damage to his good name, credit, character and reputation, and plaintiff was subjected to extreme public humiliation, scorn, contempt, derision and ridicule.

81. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR A FOURTH CAUSE OF ACTION:

82. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First, Second and Third Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

83. That on the 16th day of September, 2015, and continuing for an egregiously long period of time thereafter, the plaintiff was caused to be intentionally, maliciously, illegally, falsely and wrongfully arrested, detained, imprisoned, incarcerated, and deprived of his civil and constitutional rights, freedom, urgently required medical treatment and liberty for an unreasonable period of time by the defendants herein until he was discharged.

84. That on the 16th day of September, 2015, and continuing thereafter, the defendants did falsely, illegally, wrongfully, intentionally and maliciously arrest, detain, imprison and incarcerate the plaintiff, depriving him of his rights, liberty, urgently required medical treatment and freedom for an unreasonable period of time, all without any just cause or provocation.

85. That the plaintiff PHILLIP PITTER was fully conscious of the wrongful, intentional and illegal imprisonment, detention, incarceration and confinement, did not consent to same, and such confinement was not otherwise privileged.

86. That by reason of the foregoing, the plaintiff was caused to sustain severe and serious injuries and damages, both mentally and physically, severe nervous shock, emotional distress and illness, was placed in a position of fear for his life and well-being, was subjected to extreme embarrassment, humiliation, scorn and ridicule, defamation of character, and was severely and further injured and damaged.

87. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR THE FIFTH CAUSE OF ACTION:

88. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First, Second, Third and Fourth Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein. On or about September 16th, 2015, in the vicinity of Batchelder Street and Avenue V, County of Kings, City and State of New York, the plaintiff **PHILLIP PITTER** was assaulted and battered by the defendant police officers and/or others acting in concert with them.

89. The force used in the course of his arrest by the defendant Police Officers was excessive, unnecessary, unwarranted and violent.

90. That by reason of the foregoing, the plaintiff was caused to sustain severe and serious injuries and damages, both mentally and physically, severe nervous shock, emotional distress and illness, was placed in a position of fear for his life and well-being, was subjected to extreme embarrassment, humiliation, scorn and ridicule, defamation of character, and was severely and further injured and damaged.

91. As a result of the defendant officers' aforementioned assault and battery of the plaintiff **PHILLIP PITTER**, plaintiff has been damaged in an amount exceeding the jurisdictional limit of this Court to be determined in a trial of this action.

AS AND FOR A SIXTH CAUSE OF ACTION:

92. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First, Second, Third, Fourth and Fifth Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

93. That at all times herein mentioned, the defendants further, relentlessly and egregiously failed and refused to provide for the safety, security and protection of the plaintiff.

94. That at all times herein mentioned, the said defendants negligently failed to sufficiently hire, train and retain employees within the Police Academy and at the Command, Precinct and Patrol levels so as to ensure and provide for the safety, security and protection of the plaintiff.

95. That at all times herein mentioned, the said defendants negligently failed to prevent the within incidents of extraordinary violence and intentional infliction of physical and emotional distress by police officers and/or personnel who were acting within the course and scope of their employment for the said defendants herein.

96. That by reason of the foregoing, the plaintiff was injured.

97. That the foregoing occurrences and the resulting injuries to the plaintiff were caused solely by reason of the carelessness, negligence, negligent hiring, retention, training and supervision on the part of the defendants inducing and permitting a failure to provide for the safety, security and protection, lack of supervision and wanton and willful disregard on the part of the defendants, and without any negligence on the part of the plaintiff contributing thereto.

98. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR A SEVENTH CAUSE OF ACTION:

99. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First, Second, Third, Fourth, Fifth and Sixth Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

100. That the charges brought against the plaintiff by the defendants were solely for the purpose of covering up and/or purportedly justifying the unconscionable beating and abuse perpetrated upon the plaintiff by the defendants herein.

101. That the defendants herein intentionally, wantonly, maliciously and improperly conspired and acted in collusion in bringing said charges against the plaintiff solely for the purpose of covering up and/or purportedly justifying the unconscionable beating and abuse perpetrated upon the plaintiff by the defendants.

102. That the defendants herein intentionally, maliciously, wantonly and improperly refused, neglected, conspired and acted in collusion in failing, neglecting and/or refusing to arrest, apprehend and/or discipline the defendant police officers herein regarding their unconscionable beating, assault, intentional infliction of physical and emotional harm and abuse of the plaintiff.

103. That by reason of the foregoing, the plaintiff was caused to sustain severe and serious injuries and damages, both mentally and physically, severe nervous shock, emotional distress and illness, was placed in a position of fear for his

life and well-being, was subjected to extreme embarrassment, humiliation, scorn and ridicule, defamation of character, and was severely injured and damaged.

104. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR AN EIGHTH CAUSE OF ACTION:

105. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First, Second, Third, Fourth, Fifth, Sixth and Seventh Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

106. That at all times herein mentioned, the defendants, their servants, agents, employees, police officers and/or representatives intentionally, wantonly, maliciously and falsely prosecuted the plaintiff for the criminal charges of which they accused him.

107. That at all times herein mentioned, the defendants, their servants, agents, employees, police officers and/or representatives intentionally, wantonly and maliciously prosecuted the plaintiff, as a common criminal, causing and/or compelling his to appear in public and in Court and falsely prosecuted the plaintiff.

108. That the said criminal charges against the plaintiff were dismissed.

109. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR AN NINTH CAUSE OF ACTION:

110. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First, Second, Third, Fourth, Fifth, Sixth, Seventh and Eighth Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

111. That the defendants herein carelessly, negligently, wrongfully, wantonly, intentionally and maliciously targeted the plaintiff in an act of racial profiling, in connection with accusations, charges, slander, arrest, detention, imprisonment and assault, due to his race.

112. That the said discriminatory actions and racial profiling on the part of the defendants herein, their agents, servants, police officers, employees and/or representatives, unfairly discriminated against individuals of color and/or ethnicity in violation of Federal Civil Rights Laws, the Constitutions of the United States and of New York State.

113. That by reason of the foregoing, the plaintiff has suffered severe damages in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR A TENTH CAUSE OF ACTION:

114. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First, Second, Third, Fourth, Fifth, Sixth, Seventh, Eighth and Ninth Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

115. That this is an action to redress the deprivation under color of statute, ordinance, regulation, custom or usage of a right, privilege and immunity secured to the plaintiff by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States (42 U.S.C. Section 1981, 1983, 1985, 1986 and 1988), the Civil Rights Act, and arising under the law and statutes of the State of New York.

116. Each and all of the acts of the defendants herein were done by the defendants, their servants, agents and/or employees, and each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York and the City of New York, and under the authority of their office as police officers of said City and State.

117. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR AN ELEVENTH CAUSE OF ACTION:

118. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First, Second, Third, Fourth, Fifth, Sixth, Seventh, Eighth, Ninth and Tenth Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

119. That at all times herein mentioned, it was the duty of the defendant THE CITY OF NEW YORK to select and screen for hiring for retention or discharge as employees those who are not fit, suitable, properly trained and instructed, constituting a potential menace, hazard or danger to the public or otherwise, those with vicious propensities and those with emotional, physical, psychological, racist, biased and/or physiological traits or characteristics or unsuitable or unstable or contraindicated for such employment.

120. That at all times herein mentioned, it was the duty of the said defendant to sufficiently hire, train and retain personnel within the Police Academy and at the Command, Precinct and Patrol levels so as sufficiently discipline, supervise, promulgate and put into effect appropriate rules applicable to the duties, activities and behaviors of their servants, agents, police officers, employees and/or personnel.

121. That by reason of the negligence of the said defendants in their hiring, monitoring, supervision and retention of said defendant police officers, with knowledge of the unsuitable, unstable and unfitness to act and serve and unfitness to continue to act and serve as employees by reason of the defendants' breach of said duties, the plaintiff was caused to suffer severe injuries and damage, without fault or want of care on the part of the plaintiff in any way contributing thereto, thereby causing his extreme physical, mental and emotional illness and distress, as well as severe physical, mental and emotional injuries which are permanent in nature and duration.

122. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR A TWELFTH CAUSE OF ACTION:

123. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First, Second, Third, Fourth, Fifth, Sixth, Seventh, Eighth, Ninth, Tenth and Eleventh Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

124. That at all times herein mentioned, the defendant THE CITY OF NEW YORK had an affirmative duty to intercede when a person's, including the plaintiff's, constitutional rights were being violated in defendants' witnessed presence by use of

excessive force.

125. That at all times herein mentioned, the defendant THE CITY OF NEW YORK had an affirmative duty to intercede and prevent the further, continuing and unremitting violation of a person's, including the plaintiff's, constitutional rights resulting in further serious injuries caused as a result of said failure.

126. That at all times herein mentioned, the defendant THE CITY OF NEW YORK had an affirmative duty to intercede when a person's, including the plaintiff's, constitutional rights were being violated in defendants' witnessed presence by falsifying evidence of probable cause to arrest the plaintiff.

127. That at all times herein mentioned, the defendant THE CITY OF NEW YORK intentionally, illegally, maliciously and egregiously breached and violated its affirmative duty to intercede when a the plaintiff's civil and constitutional rights were being violated in defendants' witnessed presence by use of excessive force.

128. That at all times herein mentioned, the defendant, THE CITY OF NEW YORK intentionally, illegally, maliciously and egregiously breached and violated its affirmative duty to intercede and prevent the further, continuing and unremitting violation of the plaintiff's civil and constitutional rights resulting in further serious injuries caused as a result of said failure.

129. That at all times herein mentioned, the defendant THE CITY OF NEW YORK intentionally, illegally, maliciously and egregiously breached and violated its affirmative duty to intercede when the plaintiff's civil and constitutional rights were being violated in defendants' witnessed presence by falsifying evidence of probable cause to arrest the plaintiff.

130. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR A THIRTEENTH CAUSE OF ACTION:

131. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First, Second, Third, Fourth, Fifth, Sixth, Seventh, Eighth, Ninth, Tenth, Eleventh and Twelfth Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

132. That the defendants herein failed, neglected, omitted and refused to report and correct, rectify and/or discontinue the misconduct, improprieties, violations and malfeasance of the defendant police officers herein.

133. That the defendants herein intentionally, wantonly, negligently and maliciously conspired and acted in collusion in failing, neglecting, omitting and refusing to report, rectify and/or discontinue the misconduct, improprieties, violations and malfeasance of the defendant police officers

herein.

134. That the defendants herein intentionally, wantonly, negligently and maliciously constructed and maintained a Blue Wall of Silence in failing, neglecting, omitting and refusing to report, rectify and/or discontinue the misconduct, improprieties, violations and malfeasance of the defendant police officers herein, in violation of 42 U.S.C. 1985.

135. That by reason of the foregoing, the plaintiff was caused to sustain severe and serious injuries in amounts which exceed the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR A FOURTEENTH CAUSE OF ACTION:

136. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First, Second, Third, Fourth, Fifth, Sixth, Seventh, Eighth, Ninth, Tenth, Eleventh, Twelfth and Thirteenth Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

137. That this is an action to redress the deprivation under color of statute, ordinance, regulation, custom or usage of a right, privilege and immunity secured to the plaintiff by the First, Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States (42 U.S.C. Section 1983, 1985, 1986 and 1988) and arising under the law and statutes of the State of New York.

138. That the defendant THE CITY OF NEW YORK have a custom or policy of using excessive force on minorities.

139. That the said defendants custom or policy of using excessive force on minorities can be inferred from the facts and circumstances surrounding cases like Cardoza v. City of New York, Supreme Court, Kings County, Index No. 09401 307977-2008, Ferguson v. City of New York, Supreme Court, Kings County, Index No. 09401 18951-2001, Juanita Young v. City of New York, Supreme Court, Kings County, Index No. 09401 301162-2007, Martire v. City of New York, Supreme Court, New York County, Index No. 09401 106827-2008 and other similar excessive force, civil rights actions that have been brought against defendant THE CITY OF NEW YORK.

140. That the deprivation of plaintiff's constitutional rights was the result of defendant THE CITY OF NEW YORK's custom or policy of using excessive force on minorities.

141. That the defendant THE CITY OF NEW YORK has a custom or policy of falsely arresting innocent persons in order to meet productivity goals and quotas.

142. That the defendant THE CITY OF NEW YORK's custom or policy of falsely arresting innocent persons in order to meet productivity goals and quotas can be inferred from the facts and circumstances surrounding cases like Schoolcraft v. City of New York, United States District Court, Southern District of New York, Index No. 09401 10 CV 06005, and other similar false arrest, unconstitutional quota civil rights actions that have been brought against defendant THE CITY OF NEW YORK.

143. That the defendant THE CITY OF NEW YORK's custom or policy of improper stops, searches, strip-searches and seizures can be inferred from the facts and circumstances surrounding cases like Preston v. City of New York, Supreme Court, Bronx County, 493-2008, People v. William Eiseman, and other similar illegal search and seizure civil rights actions that have been brought against defendant THE CITY OF NEW YORK and from defendant THE CITY OF NEW YORK's UF-250 and CCRB data.

144. That at all times herein mentioned, the defendant THE CITY OF NEW YORK carelessly, negligently, intentionally, wantonly, deliberately, unscrupulously, immorally and unequivocally protected, disconnected, shielded and isolated police officers, administrators and precincts, including the defendants herein, from liability, culpability and accountability for their ongoing, intentional, malicious, deplorable, evolving and expanding custom, protocol and regimen of notorious, disgraceful and appalling violations of constitutional and civil rights, liberty and freedom by virtue of creating and maintaining a blue wall and code of silence among police officers, administrators and precincts, at the policy making level, even in their intentional, wanton and dissolute failure, neglect and refusal to properly and adequately investigate, discipline, suspend, terminate, expel, demote, dismiss and/or reassign such police officers, including the defendants herein, in response to the increasingly large numbers of civil rights claims, lawsuits, dismissals, declined prosecutions, City Council hearings, newspaper and tv reports and

complaints against THE CITY OF NEW YORK for said continually expanding custom and regimen of unreasonable and unconscionable use of excessive, unnecessary, unwarranted and egregious force, false arrest, imprisonment, malicious prosecution, violence, and savage brutality by said police officers, thereby creating, condoning, sanctioning, sustaining, promoting, encouraging and fostering such climate, custom, practice, policy and regimen of increasingly outrageous misconduct, lies, falsification, corruption and abuse, all with deliberate indifference, without fear of reprisal, for the public safety, protection and well-being.

145. That the deprivation of plaintiff's constitutional rights was the result of defendant THE CITY OF NEW YORK's custom or policy of performing improper stops, searches, strip-searches and seizures.

146. That by reason of all of the foregoing, the plaintiff suffered serious injury due to the deprivation of plaintiff's rights under the Constitution, created by a deliberate indifference to the plaintiff's rights, by policy-level decision on the part of the defendant THE CITY OF NEW YORK to act, or fail to act.

147. That the defendant THE CITY OF NEW YORK engaged in a policy, regimen, routine or custom of deliberate indifference so widespread and ingrained as to "have the force of law".

148. That by reason of all of the foregoing, the plaintiff suffered serious injury due to the deprivation of rights under the Constitution, created by such regimen, routine

and custom of deliberate indifference to the plaintiff's rights, by policy-level decision on the part of said defendant THE CITY OF NEW YORK to act, or fail to act.

149. That by reason of all of the foregoing, the plaintiff brings a Monell Claim for serious injury and damages he suffered as a result of the deliberate indifference and heightened level of culpability on the part of the defendant THE CITY OF NEW YORK.

WHEREFORE, plaintiff demands judgment against the defendants, the amount sought on each Cause of Action exceeding the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction, in amounts to be determined upon the trial of this action, together with the costs and disbursements of this action, and with interest from the date of this occurrence.

Additionally, plaintiff demands in respect of all Causes of Action, the additional total sum of **\$5,000,000.00** in punitive damages.

Dated: New York, New York
September 15, 2016

Yours, etc.,

BURNS & HARRIS
Attorneys for Plaintiff



ALISON R. KEENAN
233 Broadway - Suite 900
New York, New York 10279
(212) 393-1000

ATTORNEY VERIFICATION

ALISON R. KEENAN, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

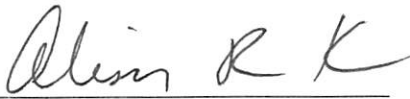
I am the attorney for the plaintiff in the within action and have read the foregoing **COMPLAINT** and know the contents thereof; the same is true upon information and belief.

This verification is made by this affirmant and not by said plaintiff because said plaintiff resides in a County other than the County wherein your affirmant maintains her office.

The grounds of affirmant's knowledge and belief are as follows: Conference with client and notes and records contained in the file maintained in the regular course of business.

The undersigned affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
September 15, 2016


ALISON R. KEENAN

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

PHILLIP PITTER,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. THOMAS
COSTARELLA, SGT. LEUNG KAIYUEN,
P.O. "JAMES" ROSSIGNOLO, first name
fictitious and presently unknown and
POLICE OFFICERS "JOHN DOES 1-10", said
names being fictitious and unknown

Defendants.

SUMMONS AND VERIFIED COMPLAINT

BURNS & HARRIS, ESQS.

Attorneys for Plaintiff

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